IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

(filed under Sections 230 to 232 of the Companies Act, 2013)

In the matter of *Scheme of Amalgamation*

CA(CAA)/28(CHE)/2023

ROCKWOOL INDIA PRIVATE LIMITED,
Sigapi Achi Building, Level-7,
18/3, Rukmani Lakshmipathi Road,
Egmore, Chennai – 600 008.

... 1st Applicant / *Transferor Company*

With

SAINT-GOBAIN INDIA PRIVATE LIMITED,
Sigapi Achi Building, Level-7,
18/3, Rukmani Lakshmipathi Road,
Egmore, Chennai – 600 008.

... *2nd Applicant / Transferee Company*

Order Pronounced on ***30th June 2023***

CORAM

SANJIV JAIN, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Mr.Pawan Jhabhak, Advocate.

ORDER

(Hearing Conducted through VC)

Per: **SANJIV JAIN, MEMBER (JUDICIAL)**

This joint application has been filed by the Applicant Companies, namely, **ROCKWOOL INDIA PRIVATE LIMITED** (for brevity "*Transferor Company*"), **SAINT-GOBAIN INDIA PRIVATE LIMITED** (for brevity "*Transferee Company*"), under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises,

Arrangements and Amalgamations) Rules, 2016 in relation to the Composite Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also annexed at **Annexure-G** of the application.

2. The Scheme provides for the Amalgamation of Transferor Company with the Transferee Company.

3. The Applicant Companies in this Company Application have sought the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY	Dispensation of meeting	Not Applicable	Convene Meeting
TRANSFEREE COMPANY	Dispensation of meeting	Not Applicable	Convene Meeting

4. Affidavits in support of the present Application sworn for and on behalf of the Applicant Companies have been filed by,

i) **Ms.P.Amudhavalli** for Transferor Company in the capacity of Authorised Signatory. The respective Board Resolution dated 25.11.2022 are placed on record.

ii) **Mr.Animesh Saha** for Transferee Company in the capacity of Authorised Signatory. The respective Board Resolution dated 25.11.2022 are placed on record.

and it is also represented that the Registered offices of all the Applicant Companies are situated within the territorial jurisdiction of the Bench of this Tribunal and fall within the purview of Registrar of Companies, Chennai.

5. Transferor Company is a private Limited company, incorporated under the provisions of Companies Act, 1956 on 14.04.1987. The Share Capital of the Transferor Company as on 31.12.2022 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 11,00,00,000 Equity shares of Rs.10/- each.	**110,00,00,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 9,70,73,316 equity shares of Rs.10/- each.	**97,07,33,160**

MAIN OBJECTS OF THE TRANSFEROR COMPANY IN BRIEF:

To carry on business of manufacturers of and merchants in rockwool and to manufacture, deal in, buy, sell, import, export, all kinds of articles and products of or formed from rock and all minerals. The complete details of the main objects are described in the Memorandum of Association placed along with the application.

6. The Transferee Company is a private limited company incorporated under the provisions of Companies Act, 1956 02.04.1997. The Share Capital of the Transferor Company as on 31.12.2022 is as follows:

PARTICULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 20,60,14,000 Equity shares of Rs.10/- each.	**206,01,40,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 14,79,35,645 equity shares of Rs.10/- each.	**147,93,56,450**

MAIN OBJECTS OF THE TRANSFEREE COMPANY IN BRIEF:

To carry on the business of manufactures, buyers, importers, exporters, sellers, agents, stockists and distributors of and dealers in and with float glass, flat glass and sheet glass, laminated and toughened glasses etc. The complete details of the main objects are described in the Memorandum of Association placed along with the application.

7. Both the Applicant companies have filed their respective Memorandaand Articles of Association inter alia delineating their object clauses. Both the Applicant companies have filed their audited Financial Statements as on 31.03.2022 and the Provisional Financial Statement as on 31.12.2022.

8. The Board of Directors of both the Applicant companies in their respective meetings held on 25.11.2022, have approved the proposed Scheme as contemplated above. Copies of resolutions passed thereon have been placed on record by the companies.

9. The Appointed date as specified in the Scheme is **01.04.2022,** or such other date as may be approved by this Tribunal.

10. The Statutory Auditors of both the Applicant Companies have certified that the Accounting Standards are in compliance with

Section 133 of the Companies Act, 2013 and the same is placed at pages 275-280 of the Application.

11. With respect to Transferor Company, it is submitted as under:

(i) There are 2 (Two) Equity Shareholders. List of shareholders to this effect is placed on record with the application. Consents by way of Affidavits given by all the Equity Shareholders are also placed on record seeking dispensation of meeting.

(ii) There is **NIL** Secured Creditor. The certificate issued by the Chartered Accountant to this effect is placed along with the application.

(iii) There are **662** (Six Hundred and Sixty-Two) Unsecured Creditors. The certificate issued by the Chartered Accountants to this effect is placed with the application. It has sought directions to convene meeting.

12. With respect to Transferee Company, it is submitted as under:

(i) There are 7 (Seven) Equity Shareholders. List of shareholders to this effect is placed on record with the application. Consents by way of Affidavits given by all the Equity Shareholders are also placed on record seeking dispensation meeting.

(ii) There is **NIL** Secured Creditor. The certificate issued by the Chartered Accountant to this effect is placed along with the application.

(iii) There are **14,198** (Fourteen Thousand One Hundred and Ninety-Eight) Unsecured Creditors. Certificate issued by the Chartered Accountants to this effect is filed with the application. It has sought directions to convene meeting.

13. Taking into consideration of the submissions and the documents on record, this Tribunal issues the following directions: -

A) IN RELATION TO TRANSFEROR COMPANY:

(i) With respect to Equity shareholders:

Since, it is represented that there are 2 (Two) Equity Shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening a meeting is **dispensed with**.

(ii) With respect to Secured Creditors:

Since it is represented that there is **NIL** Secured Creditor in the Company, the necessity of Convening a meeting **does not arise**.

(iii) With respect to Unsecured Creditors:

Since it is represented that there are **662** (Six Hundred and Sixty-Two) Unsecured Creditors in the Company and has sought directions for convening meeting, a meeting of the unsecured creditors of the Transferor Company is directed to be held at **10.00 AM** on **16.08.2023** at the registered office of the Transferor Company or if not convenient at any other suitable place for which prior approval be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices

B) IN RELATION TO TRANSFEREE COMPANY:

(i) With respect to Equity Shareholders:

Since it is represented that there are 7 (Seven) Equity Shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening a meeting is **dispensed with**.

(ii) With respect to Secured Creditors:

Since it is represented that there is **NIL** Secured Creditor in the Company, the necessity of Convening a meeting **does not arise**.

(iii) With respect to Unsecured Creditors:

Since it is represented that there are **14,198** (Fourteen Thousand One Hundred and Ninety-Eight) Unsecured Creditors in the Company and has sought directions for convening meeting, a meeting of the unsecured creditors of the Transferee Company is directed to be held at **12.00 PM** on **16.08.2023** at the registered office of the Transferee Company or if not convenient at any other suitable place for which prior approval be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

14. The quorum for the meetings of the Transferee Company shall be as follows;

COMPANY	CLASS	QUORUM
TRANSFEROR COMPANY	UNSECURED CREDITORS	120
TRANSFEREE COMPANY	UNSECURED CREDITORS	2800

i) The Chairperson appointed for the above said meeting shall be **Mr.Anil Kumar B** (Mobile No.8129270036) and would be entitled to fee of **Rs.75,000/-**.

ii) **Mrs. Pavitra Sundarajan** (Mobile No.9566210824) and is appointed as a Scrutinizer would be entitled to fee of **Rs.35,000/-.** The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

iii) In case the quorum as noted above, for the above meeting of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson and Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) The meetings shall be conducted as per applicable procedure prescribed under the MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May, 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

voting by proxy not allowed if the meetings are held through video conferencing.

v) That individual notices of the above said meetings shall be sent by the Applicant Company through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

vi) That the Applicant Company shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily "Business Standard" (All India Edition), and "Makkal Kural" *Tamil* (Tamil Nadu Edition) in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vii) The Chairperson shall be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme. Voting % of creditors as per list is to be decided after

considering the amount of debt as on the date of voting, which is to be considered by the Chairperson.

viii) The applicant companies shall further furnish copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

ix) The Authorized Representative of the Applicant Companies shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

x) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

15. The Application stands **allowed** on the aforesaid terms and is disposed of.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

SANJIV JAIN
MEMBER (JUDICIAL)

*Order pronounced under Rule 151 of NCLT Rules 2016, by **Hon'ble Judicial Member Sanjiv Jain** on behalf of the Bench comprising of **Sanjiv Jain, Member (Judicial) and Sameer Kakar, Member (Technical)**.*

M. Nallunchezhiyan
Court Officer